

DUTIES OF TRUSTEES FOR RAISING PORTIONS.

THE subject of portions is of so extensive a character, that to exhaust it would require a treatise by itself. All that can be attempted in a single chapter is a brief summary of the law upon the points of most usual occurrence in practice.¹

Who are portionists. — We propose in the *first* section to inform trustees *who* are their *cestuis que trust*, or in other words who are to be regarded as portionists — a question that appears simple enough in itself, and yet involves a multitude of cases which can only be reconciled by the most refined distinctions. The principal struggle has been where and under what circumstances an *eldest* son is to be included amongst or excluded from the designated class. But further,

¹ *Raising portions.* — In the United States, portions are generally raised out of rents and profits, or by mortgaging the estate. If the portion is to be raised in accordance with the provisions of a will, the directions must be strictly followed; 1 Story Eq. Jur. § 575. It is important to determine whether a portion is to be raised at once upon the happening of a certain event, or is to await the termination of a life estate in the parents; 2 Story Eq. Jur. § 1003. Some cases have been decided one way and some the other, but perhaps the majority favor the immediate vesting of the interest, and the postponement of payment during the life of the parents; *Everett v. Mount*, 22 Ga. 323; *Letchworth's App.* 30 Pa. St. 175; *Thrasher v. Ingram*, 32 Ala. 645; *Bowman v. Long*, 23 Ga. 242; *Petty v. Moore*, 5 Sneed, 126. The intention should be clearly shown, and generally the portion will vest on the coming of age of the party receiving it; *Cox v. McKinney*, 32 Ala. 461; *High v. Worley*, 32 Ala. 709; *Devane v. Larkins*, 3 Jones Eq. 377. If the trustees are to raise the portions "as soon as conveniently may be," or "as soon as possible," they will do it by mortgage, rather than from the rents and profits; *Bloomer v. Waldron*, 3 Hill, 367. And this may be done when the trustees are directed to raise it from rents and profits, if they are not expressly limited to annual profits; *Schermerhorne v. Schermerhorne*, 6 Johns. Ch. 70; 2 Story Eq. Jur. § 1063. Where the rents and profits are to be applied to the education and maintenance of children there is a charge on the estate; *Fox v. Phelps*, 20 Wend. 437; if the portion is not raised from the rents and profits, the distributees of them may be required to refund; *Hawley v. James*, 5 Paige, 318.